



CRY - PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE RULES

PREAMBLE:

CRY is known for its commitment to values and emphasis on dignity of its employees. It is in pursuance to this that these sexual harassment rules have been formulated.

Section 1 - SCOPE:

This policy applies to all employees of CRY working in CRY offices all over India or working off site at all times as defined in Section 2

Section 2 - Definitions

2.1 “Aggrieved Person” shall mean a Person of any gender who alleges to have been subjected to any act of Sexual Harassment within the Workplace

2.2 “Management” shall include the person or board or committee responsible for formulation, administration and implementation of policies and rules for the Organization

2.3 “Person” shall mean all employees working for the Organization and shall include employees of agents or contractors of the Organization for the purpose of this Policy

2.4 “Employer” shall mean the person/s responsible for the management, supervision and control of the Organization

2.5 “Internal Complaints Committee” or “ICC” shall mean a body of Committee members nominated by the management .

2.6 “Outsider” shall mean any person with whom employees of CRY have dealings with, in the course of their employment.

2.7 “Representatives” shall mean designated employees in various locations of CRY nominated by CC in their respective locations for complaint handling as per Section 5 hereunder.

2.8 “Respondent” shall mean a person against whom the Aggrieved Person has made a complaint as indicated in Section 6 hereunder.

2.9 “Sexual Harassment” shall mean and include such behavior and conduct as indicated in Hereunder in section 3

2.10 “Workplace” shall mean any office or other work area of CRY where the Persons work or provide services for the Organization and shall include any place visited by the Person arising out of or during the course of employment, including transportation provided by the Employer for taking such journey.

3. SEXUAL HARASSMENT

What constitutes sexual harassment?



CRY - PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE RULES

“Sexual harassment” includes any unwelcome, sexually determined behaviour within the Workplace such as physical contact, advances, sexually coloured remarks, showing pornography or making demands or requests for sexual favours, any other unwelcome physical, verbal, or non-verbal conduct.

The following circumstances, if they occur or are connected with any act or behavior of sexual harassment, may amount to sexual harassment:

- a. Implied or explicit promise of preferential treatment in that Person’s employment; or
- b. Implied or explicit threat of detrimental treatment in that Person’s employment; or
- c. Implied or overt threat about the present or future employment status of that Person

INTERNAL COMPLAINTS COMMITTEE: (ICC) –

An Internal Complaints Committee shall be formed by the CEO comprising of a Presiding Officer who will be a senior woman employee at the workplace.

There will be at least 2 employees who are committed to the cause of women or who have had experience in social work or have legal knowledge; and one member from amongst non-governmental organisations or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment.

At least one-half of the total Members so nominated shall be women.

No member of the committee shall hold the position for more than three years

4. COMPLAINTS & INQUIRY

The following process will be followed whenever an Aggrieved Person registers a case of Sexual Harassment.

Registering Complaints

- A complaint of sexual harassment may be lodged by any Aggrieved Person in writing to the Chairperson of the ICC or to any of its Representatives within a period of three months from the date of the incident and in case of a series of incidents, within a period of three months from the date of the last incident
- Where an Aggrieved Person is unable to make a complaint on account of his/her physical or mental incapacity or death or otherwise, his/her legal heir or such other person may make a complaint under this section. If a complaint has been registered with any of the Representatives, then they should forward the same to the ICC



CRY - PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE RULES

- The Representatives/ICC members will provide support to the Aggrieved Person reporting the Sexual Harassment and reinforce the confidentiality of the whole process
- The ICC has the authority to investigate not only formally lodged complaints, but can, at its own discretion, also look into informal reports of Sexual Harassment at any location or act suo motto and take appropriate steps.

Complaints against ICC Representatives

If a complaint is lodged with the ICC against one of its members then the member against whom the complaint has been registered will be excluded from the complaint handling process for the said matter.

Conciliation

The CC may, before initiating an inquiry under this Policy and at the request of an Aggrieved Person, take steps to settle the matter between the Aggrieved Person and the Respondent through conciliation. If a settlement is arrived at, the ICC shall record the settlement so arrived at and forward the same to the Employer to take action as specified in the recommendation. The ICC shall provide the copies of the recorded settlement to the Aggrieved Person and the Respondent. Where a settlement is arrived at under this Rule, no further inquiry shall be conducted by the ICC.

Inquiry

- In case a complaint of Sexual Harassment is received from an Aggrieved Person, if the Respondent is an employee, the inquiry will be in accordance with the provisions of the Organization's disciplinary rules

If the Respondent is an employee of an agent or contractor of the Organization, the ICC will inform the Respondent's employer to take appropriate action. If the Respondent is an Outsider, the ICC will take appropriate decision based on the prima facie enquiry it has carried out

- If ICC deems fit, it may lodge a complaint with the police under the Indian Penal Code
- If both the parties are employees, the parties shall, during the course of inquiry, be given an opportunity of being heard and a copy of the findings shall be made available to both the parties, enabling them to make representation against the finding before the ICC. Both the parties will have the right to cross examine the witnesses and the



CRY - PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE RULES

transcription will be provided to the counterparty. Cross examination can be done face to face, by videoconference or in writing. The dignity of the complainant should not be violated at any time by the cross examiner

- For the purpose of making an inquiry, the ICC shall have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908 when trying a suit in respect of the following matters, namely:-
 - (a) Summoning and enforcing the attendance of any person and examining him on oath;
 - (b) Requiring the discovery and production of documents; and
 - (c) Any other matter which may be prescribed.

Inquiry Report

The ICC will submit a report of its findings to the Employer on completion of the inquiry and such report may be made available to the concerned parties. Where the ICC arrives at the conclusion that the allegation against the Respondent has not been proved, it shall recommend to the Employer that no action is required to be taken in the matter. Where the ICC arrives at the conclusion that the allegation against the Respondent has been proved, it shall recommend to the Employer, the appropriate action as it may deem fit, which may extend from penal charges to termination of employment.

The Employer may act upon the recommendation of the ICC.

Appeal

Any person aggrieved from the recommendation made and the penalty recommended may appeal to the appellate authority. For Grade 9 and below till Grade 1 the appellate authority will be the CEO of CRY and for Grade 10 the appellate authority will be the Chairman of the Trustee Board.

The aggrieved party will have to make the appeal within a period of 30 days from the date of receipt of the judgment.

The appellate authority will have to respond to the appeal within a period of 30 days of receipt of the appeal from the aggrieved party



CRY - PREVENTION OF SEXUAL HARASSMENT AT THE WORKPLACE RULES

7. DISCIPLINARY ACTION

False Complaints

Upon investigation, if it is found that the complaint by an Aggrieved Person is false or filed with malafide intentions, appropriate disciplinary action would be taken against such a Person.

False Evidence

If it is found that during the inquiry any witness has given false evidence or produced any forged or misleading document, appropriate disciplinary action would be taken against such witness, and if the witness is not an employee of the Organisation, the Organisation may recommend to the employer of the witness to take action in accordance with the provisions of the service rules applicable to the said witness or where no such service rules exist, in such manner as may be prescribed.

Action for Sexual Harassment

A Respondent found guilty of Sexual Harassment will be subject to disciplinary action by the Management.

8. CONFIDENTIALITY

Confidentiality of the whole process must be maintained and any aspect of the case must not be discussed with anyone other than the persons involved in the matter, whether within or outside the organization by:

- ICC Members or Representatives
- Any Person who lodges a complaint,
- A Person against whom a complaint is lodged
- A Person who participates in an investigation

9. FURTHER AMENDMENTS

The Organization's Management reserves the right to add, alter or modify this Policy as it deems fit.

Signed



Ratan Batliboi
Chairperson Trustee Board
CRY-Child Rights & You